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National Geospatial-Intelligence Agency

INSTRUCTION

NUMBER 8040.2

21 October 2020

SI

SUBJECT: Records Management Program

References: See Enclosure 1.

1. PURPOSE. This Instruction:

a. Establishes policy and assigns responsibilities for the NGA Records Management Program in accordance with (IAW) References (c), (f), (h), and (t).

b. Rescinds NGA Instruction 8040.2, Volumes 1–5, “Records and Information Lifecycle Management,” 30 March 2016.

2. APPLICABILITY. This Instruction applies to all NGA civilian employees, military service members, other Government agency personnel assigned to NGA, and contractors, hereinafter referred to as *personnel*.

3. DEFINITIONS. See Glossary.

4. POLICY. It is NGA policy:

a. That all personnel manage Agency records throughout the entire information life cycle and transition away from paper-based processes to a fully electronic environment IAW References (c) through (i), and (t).

b. To efficiently and effectively create, identify, protect, preserve, and properly dispose of NGA records in all media, including electronic, IAW References (c) through (i), and (t).

5. RESPONSIBILITIES. See Enclosure 2.

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6. EFFECTIVE DATE. This Instruction is effective on the date of signature.

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ernest b markhaeb
Date: 2020.10.21 09:20:01
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Ernest B. Markham
Chief of Staff

Enclosures

1. References
2. Responsibilities

Glossary

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CHANGE LOG

Change	Change Date	Revised By	Pages Affected	Change Description

ENCLOSURE 1REFERENCES

- (a) 18 United States Code (USC) § 641, "Public money, property or records," as amended
- (b) 18 USC § 2071, "Concealment, removal, or mutilation generally," as amended
- (c) 44 USC, Ch. 31, "Records Management by Federal Agencies," as amended
- (d) 44 USC Ch. 33, "Disposal of Records," as amended
- (e) 44 USC Ch. 35, "Coordination of Federal Information Policy," as amended
- (f) 36 Code of Federal Regulations, Chapter XII, Subchapter B, "Records Management," as amended
- (g) Executive Office of the President of the United States, "Delivering Government Solutions in the 21st Century: Reform Plan and Reorganization Recommendations," June 2018
- (h) Office of Management and Budget Circular A-130, "Managing Information as a Strategic Resource," 28 July 2016
- (i) Office of Management and Budget Memorandum M-19-21, "Transition to Electronic Records," 28 June 2019
- (j) National Archives and Records Administration (NARA) Bulletin 2019-02, "Agency Records Officer Credential Training and Renewal Policy," 25 September 2019
- (k) NARA Bulletin 2017-01, "Agency Records Management Training Requirements," 29 November 2016
- (l) NARA Bulletin 2017-02, "Guidance on Senior Agency Officials for Records Management," 28 September 2017
- (m) NARA Bulletin 2015-04, "Metadata Guidance for the Transfer of Permanent Electronic Records," 15 September 2015
- (n) NARA Bulletin 2014-06, "Guidance on Managing Email," 15 September 2014
- (o) NARA Bulletin 2014-04, "Format Guidance for the Transfer of Permanent Electronic Records," 31 January 2014, revised 30 August 2018
- (p) NARA Bulletin 2013-02, "Guidance on a New Approach to Managing Email Records," 29 August 2013
- (q) NARA, "The General Records Schedules: Transmittal 31," April 2020
- (r) NARA, "Essential Records Guide," August 2018
- (s) NARA, "Guide to the Inventory, Scheduling, and Disposition of Federal Records," 02 October 2018
- (t) DoD Instruction 5015.02, "DoD Records Management Program," 24 February 2015, Incorporating Change 1, 17 August 2017
- (u) DoD Manual 5240.01, "Procedures Governing the Conduct of DoD Intelligence Activities," 08 August 2016
- (v) DoD Standard 5015.02-STD, "Electronic Records Management Software Applications Design Criteria Standard," 25 April 2007
- (w) NGA Directive 8005, "Data Management and Analytics," 20 June 2019, Administrative Update 2, 27 August 2020 (U//FOUO)
- (x) NGA Instruction (NGAI) 5401.1, "Privacy and Civil Liberties Program," 26 January 2020

- (y) NGAI 8900.4, "Intelligence Oversight Compliance and Awareness Program,"
18 July 2019
- (z) NGA "Records Control Schedules," as amended

ENCLOSURE 2

RESPONSIBILITIES

1. Director, NGA.

a. Establishes NGA's Records Management Program (RMP) IAW References (c), (e), (f), and (t).

b. Designates a Senior Agency Official for Records Management (SAORM) IAW References (g), (l), and (t).

2. SAORM.

a. Collaborates with the DoD SAORM to fulfill the SAORM responsibilities IAW Reference (t).

b. Ensures that NGA efficiently and appropriately complies with applicable records management statutes, regulations, and policies and promotes effective records management IAW References (c), (e), (f), (i), (l), and (t).

c. Designates an Agency Records Officer (ARO) to administer and oversee the RMP IAW References (l) and (t).

d. Ensures that the designated ARO holds the National Archives and Records Administration (NARA) ARO Credential (AROC) within one year of designation and maintains certification IAW References (j) and (t).

3. ARO.

a. Administers and oversees the implementation of the NGA RMP IAW References (c), (f), and (t).

b. Obtains and maintains current AROC training IAW References (i), (j), and (t).

c. Designates the Chief, RMP (C/RMP), to manage NGA's RMP operations and functions IAW References (c), (d), (f), and (t).

d. Advises the SAORM of annual NARA reporting requirements and consults on Agency records management issues and initiatives with the DoD, Intelligence Community, and NARA as deemed appropriate.

e. Provides periodic briefings to Directorate Heads and Agency Element leads on identifying and preserving essential records to support continuity of operations and to protect rights and interests IAW References (f), (r), and (t).

4. C/RMP.

- a. Manages the RMP and establishes effective controls and business processes over all records in Agency custody IAW References (c), (d), (f), and (t).
- b. Develops and maintains effective records management policy, records schedules, and guidance implementation for all records created and received by the Agency IAW References (c), (d), (f), (t), and (z).
- c. Establishes safeguards against the removal or loss of records and reports any unlawful or accidental removal, defacing, alteration, or destruction of records to NARA IAW References (c), (f), and (t).
- d. Coordinates and consults on Agency records management issues and initiatives with the DoD, Intelligence Community, and NARA as deemed appropriate.
- e. Operates Agency Records Holding Areas in support of records disposition requirements.
- f. Manages and maintains all records management training requirements at NGA IAW References (j), (k), and (t).
- g. Ensures specifications and standards for transfer of audiovisual, cartographic, architectural, and electronic records to NARA are followed IAW Reference (f).
- h. Serves as the certifying official for receiving and transferring inactive Agency records and for accessioning permanent records to NARA. (Reference (c))
- i. Collaborates with the Director, Chief Information Officer and Information Technology Services (D/CIO-T), and Director, Office of Strategic Operations (D/OSO), to ensure Capstone Official email accounts are identified and managed effectively for safeguarding and retention IAW References (f), (h), (m) through (q), (v), and (w).
- j. Collaborates with D/CIO-T and D/OSO to establish non-Capstone email capabilities for managing temporary email records IAW References (f), (h), (n), (q), (t), and (v).

5. D/CIO-T.

- a. Incorporates and manages records management and archival functions into the design, development, and implementation of information systems IAW References (e), (f), (h), (n), (t), and (v).
- b. Integrates and manages metadata to uphold NGA electronic records preservation and disposition requirements within information systems, the cloud, and collaborative environments IAW References (f), (m), (o), (t), (v), and (w).

c. Collaborates with the C/RMP and D/OSO to ensure Capstone Official email accounts are identified and managed effectively for safeguarding and retention IAW References (f), (h), (m) through (q), (v), and (w).

d. Collaborates with the C/RMP and D/OSO to establish non-Capstone email capabilities for managing temporary email records IAW References (f), (h), (n), (q), (t), and (v).

6. D/OSO.

a. Collaborates with the C/RMP and D/CIO-T to ensure Capstone Official email accounts are identified and managed effectively for safeguarding and retention IAW References (f), (h), (m) through (q), (v), and (w).

b. Collaborates with the C/RMP and D/CIO-T to establish non-Capstone email capabilities for managing temporary email records IAW References (f), (h), (n), (q), (t), and (v).

7. General Counsel.

a. Provides legal guidance to the ARO for all records-related practices as requested.

b. Advises the ARO of any records subject to legal holds on scheduled destruction resulting from audits, court cases, Freedom of Information Act and Privacy Act requests and appeals, or other official inquiries IAW References (d) and (f).

8. Directorate Heads and Agency Element Leads.

a. Incorporate records management business principles and processes into organizational programs, systems, and procedures IAW References (c), (f), and (t).

b. Identify and designate a Primary Information Officer (PIO) and an Information Officer (IO) liaison to each office for records management and ensure PIO and IO functions are accomplished and sustainable.

c. Convert any procedure or function that currently results in paper records to full digital procedures and functions IAW References (i) and (t).

d. Determine which records within their physical or legal custody are essential and ensure all essential records are available at planned alternate facilities IAW References (r) and (t).

e. Oversee abatement of unlawful removal, alteration, or destruction of records from NGA IAW References (a) through (c), and (t).

9. PIO.

- a. Ensures records management compliance within the Directorate or Agency Element.
- b. Serves as a facilitator and champion for records management within the office in order to establish records management business processes within the Directorate or Agency Element.
- c. Oversees one or more subordinate IOs to facilitate the establishment of the records management business processes within the Directorate or Agency Element.
- d. Ensures that an inventory and a current approved Office File Plan (OFP), not more than one year old, are in place to cover all administrative and mission records that are created or received by the Directorate or Agency Element.
- e. Oversees proper disposition of inactive records within the Directorate or Agency Element.
- f. Ensures that all PIOs and/or IOs are RMP-trained and performing their responsibilities.
- g. Replaces any subordinate PIOs and/or IOs within the Directorate or Agency Element who transition to new duties or positions.
- h. Ensures Capstone Official email records (including attachments), calendars, and to-do lists are captured for retention by the NGA RMP IAW References (n), (p), and (t).
- i. Notifies Directorate Head or Agency Element Lead of transition to new duties or position so that a new PIO can be designated to ensure continuity.
- j. Reports immediately any unlawful or accidental removal, defacing, alteration, deletion, or destruction of records to Directorate Heads or Agency Element Leads and the C/RMP IAW References (c), (f), and (t).
- k. Coordinates with the IO regarding any records management issues or initiatives.

10. IO.

- a. Promotes and facilitates records management within the office, division, or branch in order to establish records management business processes within the organization.
- b. Coordinates with the PIO regarding any records management issues or initiatives.

c. Performs an inventory of all information created, received, or held by the office, division, or branch.

d. Builds and maintains a current and approved OFP to properly disposition all administrative and mission records created or received by the office, division, or branch.

e. Establishes an office recordkeeping system for records and non-records, aligning records with the approved OFP IAW References (q), (s), (t), and (z).

f. Trains all office personnel on the recordkeeping system to file records they create/receive.

g. Transfers or coordinates the transfer of inactive permanent and long-term temporary records to the RMP Records Holding Area for preservation.

h. Properly disposes of inactive temporary records based on NARA-approved disposition instructions.

i. Assists the PIO in the capture of Capstone Official email records for retention by the NGA RMP IAW References (n), (p), and (q).

j. Reports immediately any unlawful or accidental removal, defacing, alteration, deletion, or destruction of records to Directorate Heads or Agency Element Leads and the C/RMP IAW References (c), (f), and (t).

k. Notifies PIO of transition to new duties or position to ensure continuity.

l. Completes required training.

11. Personnel.

a. Complete annual mandatory records management training.

b. File and manage NGA records in an Agency recordkeeping system as established by the PIO or IO IAW References (c) and (f), this Instruction, and Agency-specific records management training and requirements. In the event that NGA networks or file systems are inaccessible (e.g., by personnel embedded in another Intelligence Community element), contact the designated IO or the RMP for proper filing and transfer procedures.

c. Report immediately any unlawful or accidental removal, defacing, alteration, deletion, or destruction of records to Directorate Heads or Agency Element Leads and the C/RMP IAW References (c), (f), and (t).

d. Comply with records management procedures when conducting official business using non-official electronic messaging accounts.

e. Ensure the evaluation and protection of records containing US Person information, Personally Identifiable Information, and individually identifiable health information IAW References (t), (u), (x), and (y).

f. Ensure continuity of records under their purview by properly filing or transferring records upon departure from NGA IAW Reference (f).

GLOSSARY

Administrative Records	Those records created by all DoD organizations, regardless of organizational level, in performing common functions that support the organization's mission activities, but do not directly document the performance of mission functions. The records relate to activities such as budget and finance, human resources, medical, equipment and supplies, facilities, public and congressional relations, contracting, and similar administrative housekeeping or facilitative functions common to most agencies. (Reference (t))
Capstone Email	Accounts of individuals who, by virtue of their work, office, or position, are likely to create or receive permanently valuable Federal records. Capstone officials will generally be the top-level senior officials of an agency, but may also be other key decision makers at lower levels of the agency. (Reference (n))
Capstone Official	Senior officials designated by account level or by email addresses, whether the addresses are based on an individual's name, title, a group, or a specific program function. (Reference (q))
Certifying Official	An official of the Government who is authorized to certify to facts on the basis of records in such official's custody, may certify to facts on the basis of records that have been transferred by such official or such official's predecessors to the Archivist, and may authorize the Archivist to certify to facts and to make administrative determinations on the basis of records transferred to the Archivist, notwithstanding any other law. (Reference (c))
Disposition	Actions taken regarding records no longer needed for the conduct of the regular current business of the agency. (Reference (f))
Disposition Authority	The legal authorization for the retention and disposal of records. For Federal records it is found on SF 115s, "Request for Records Disposition Authority," which have been approved by the Archivist of the United States. For non-record materials, the disposition is established by the creating or custodial agency. (Reference (f))

Inactive Records	Records that are no longer used in the day-to-day course of doing business, but are preserved for legal, historical, or operational purposes until final disposition. (Definition developed by NGA for NGA purposes only.)
Information Life Cycle	The stages through which information passes, typically characterized as creation or collection, processing, dissemination, use, storage, and disposition, including destruction and deletion. (Reference (h))
Information Officer (IO)	Facilitator and liaison with the RMP for Records Management in an office. (Definition developed by NGA for NGA purposes only.)
Metadata	Data that consists of preserved contextual information describing the history, tracking, and/or management of an electronic document. (Reference (f))
Mission Records	Records created by a Federal agency in performing its unique functions that stem from the distinctive mission of the agency. The agency's mission is defined in enabling legislation and further delineated in formal regulation. (Definition developed by NGA for NGA purposes only.)
Office File Plan (OFP)	A document containing the identifying number, title or description, and disposition authority for files held in an office. The file plan should contain up-to-date and accurate disposition authorities and retention periods from the records schedule for all records and non-record materials held in an office. (Reference (s))
Permanent Record	Any Federal record determined by NARA to have sufficient value to warrant its preservation in the National Archives of the United States, even while it remains in agency custody. Permanent records are those for which the disposition is permanent on SF 115, "Request for Records Disposition Authority" (now referred to as Disposition Authority Agency), approved by NARA on or after 14 May 1973. The term also includes all records accessioned by NARA into the National Archives of the United States. (Reference (f))
Personally Identifiable Information	Information that can be used to distinguish or trace an individual's identity, either alone or when combined with other information that is linked or linkable to a specific person. (Reference (x))

Primary Information Officer (PIO)	A facilitator for Records Management and liaison with the RMP for a Directorate or Agency Element. (Definition developed by NGA for NGA purposes only.)
Record	Includes all recorded information, regardless of physical form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the US Government or because of the informational value of the data in it. (Reference (t))
Records Holding Area	A facility used by a Federal agency to store Federal records, whether that facility is operated and maintained by the agency, by NARA (Federal Records Center), by another Federal agency, or by a private commercial entity. (Reference (f))
Records Management	Planning, controlling, directing, organizing, training, promoting, and other managerial activities involved with records creation, records maintenance and use, and records disposition in order to achieve adequate and proper documentation of the policies and transactions of the Federal Government and effective and economical management of agency operations (also referred to as Records and Information Management). (Reference (f))
Records Management Program (RMP)	A plan that provides day-to-day Records Management oversight, guidance, training, and assistance to NGA Directorates or Agency Elements and personnel. (Definition developed by NGA for NGA purposes only.)
Records Schedule	Any of the following: 1. A Standard Form 115, "Request for Records Disposition Authority," that has been approved by NARA to authorize the disposition of Federal records; 2. A General Records Schedule issued by NARA; or 3. A published agency manual or directive containing the records descriptions and disposition instructions approved by NARA on one or more SF 115s or issued by NARA in the General Records Schedule. (Reference (f))

US Person

Includes:

- A US citizen.
- An alien known by the Defense Intelligence Component concerned to be a permanent resident alien.
- An unincorporated association substantially composed of US citizens or permanent resident aliens.
- A corporation incorporated in the United States, except for a corporation directed and controlled by a foreign government or governments. A corporate or corporate subsidiary incorporated abroad, even if partially or wholly owned by a corporation incorporated in the United States, is not a US Person.
- A person or organization in the United States is presumed to be a US Person, unless specific information to the contrary is obtained. Conversely, a person or organization outside the United States, or whose location is not known to be in the United States, is presumed to be a non-US Person, unless specific information to the contrary is obtained. (Reference (u))